MARIN COUNTY BOARD OF SUPERVISORS

RESOLUTION NO. 26-052

A RESOLUTION FORMING UPPER BAY PERMANENT ROAD DIVISION

WHEREAS, the section of Bay Road (called "Upper Bay Road" for purposes of this formation) is not a County-maintained road, but rather, a private road in unincorporated Marin located in Mill Valley; and

WHEREAS, Upper Bay Road is in need of roadway repairs and maintenance, and funding for this work would be provided via a special tax measure approved at a special election, if approved; and

WHEREAS, on June 23, 2026, certain residents on Upper Bay Road, in compliance with Streets and Highways Code section 1162, presented a petition for the formation of a permanent road division to the Marin County Board of Supervisors; and

WHEREAS, said petition complies with the statutory requirements for such petitions, contains the signatures of at least a majority of the landowners within the proposed division, and requests a hearing to consider the formation of the Upper Bay Permanent Road Division (UBPRD); and

WHEREAS, there have been two formal objections to formation of the UBPRD, citing disproportionate use of the road by the property owners at the beginning portion of the road compared to costs for road repair attributed to these owners; and

WHEREAS, said petition proposes to include the parcels and the portions of Upper Bay Road that are identified on Exhibit A , attached hereto; and

WHEREAS, the hearing to consider the formation of UBPRD was set for June 23, 2026 and notice of this hearing was published in a local newspaper no less than once a week for three successive weeks, with the last publication no less than seven days prior to the hearing, in compliance with Streets and Highways Code sections 1164 and 1196; and

WHEREAS, the hearing to consider the formation of UBPRD occurred on the date and time set forth in the notice, and all petitioners, objectors, and members of the public were invited to attend.

NOW, THEREFORE, BE IT RESOLVED that the Board of Supervisors of the County of Marin hereby resolves as follows:

1. The foregoing recitals are true and correct.

2. The UBPRD is formed for the purpose of providing the following services on Upper Bay Road: (1) road repaving; (2) ongoing road base repair and rehabilitation; (3) ongoing maintenance and future capital repairs; and (4) administrative and engineering services, as necessary.

3. .Proceedings for formation of the PRD are valid and in conformity with the requirements of the Permanent Road Division Law, Article XIIIID of the State Constitution, and Government Code section 53753.

4. The UBPRD, containing the boundaries and parcels as set forth in Exhibit A, is declared established as a Permanent Road Division pursuant to Streets and Highways Code section 1162.6.

PASSED AND ADOPTED at a regular meeting of the Marin County Board of Supervisors held on this 23rd day of June, 2026 by the following vote:

AYES: SUPERVISORS: Sackett, Moulton-Peters, Rodoni, Lucan

NOES:

ABSENT: SUPERVISOR: Colbert

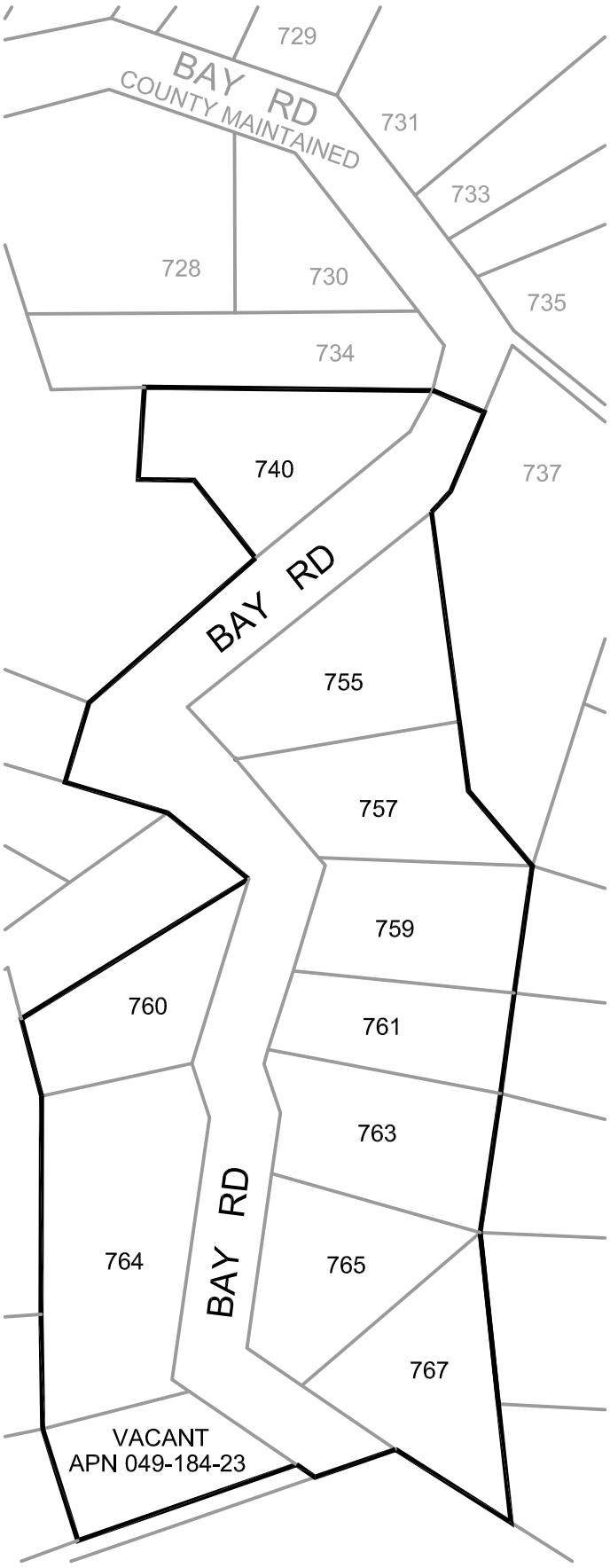
Eric Lucan, PRESIDENT

MARIN COUNTY BOARD OF SUPERVISORS

Attest:

DEPUTY CLERK

Clerk of the Board of Supervisors



Graphic Scale (in feet)

100 0 100 200

1 inch = 100 ft.

LEGEND

ASSESSMENT DISTRICT BOUDNARY

LOT LINE

PROPERTY ADDRESS

BOUNDARY ILLUSTRATED IS BASED ON MARIN COUNTY ASSESSOR'S MAP BOOK 49, PAGES 13, 18, 19

Rev.		Date:	April 10, 2026
Job No.	2600059	Scale:	1 inch = 100 ft.

MAP OF PROPOSED BOUNDARIES OF BAY ROAD PERMANENT ROAD DIVISION ASSESSMENT DISTRICT

MILL VALLEY MARIN COUNTY CALIFORNIA

CSW ST2